

WAIVER OF LIABILITY, INDEMNITY AGREEMENT AND ASSUMPTION OF RISK

PLEASE READ CAREFULLY · INITIAL EACH SECTION · SIGN BELOW

DRAFT v2 — pending legal review. Prepared for review by an Arizona attorney. Do not put into use, and remove this notice only after counsel has approved the final text.

This Agreement is between **Above & Beyond Fitness LLC** (“Above & Beyond Fitness”) and the undersigned client (“Client”). It applies to every session, class, and related service provided on or after the date signed below, and remains in effect until replaced in writing.

CLIENT NAME (PLEASE PRINT)

DATE OF THIS AGREEMENT

1. SERVICES AND LOCATIONS COVERED

Client understands that Above & Beyond Fitness provides personal training and fitness instruction that may take place: (a) in Client’s home or another private residence; (b) outdoors, including sidewalks, parks, and desert trails; (c) at a gym, studio, community facility, or other venue; and (d) remotely by live video (“virtual training”).

This Agreement applies to all of these settings, to any equipment used in them — whether supplied by Above & Beyond Fitness or by Client — and to travel by Above & Beyond Fitness to and from any session location.

CLIENT INITIALS

2. WAIVER OF LIABILITY

Client, for Client and for Client’s heirs, personal representatives, and assigns, in consideration of being permitted to participate in the services described in Section 1, and in addition to the payment of any fee or charge, **does hereby release, waive, covenant not to sue, and discharge** Above & Beyond Fitness, its owner, employees, trainers, independent contractors, representatives, and agents **from any and all claims, demands, and causes of action arising from the ordinary negligence or omission** of Above & Beyond Fitness or any of those parties. This applies to:

- **Personal injury** — including but not limited to death, heart attack, stroke, muscle strains, pulls or tears, broken bones, joint or soft-tissue injury, aggravation of a pre-existing condition, falls, heat illness, or any other illness, soreness, or injury — however caused, occurring during or after participation in any service described in Section 1; and
- **Property** — any claim for damage to, loss of, or theft of Client’s property in connection with those services.

This release does not apply to gross negligence, recklessness, or intentional misconduct, or to any liability that cannot lawfully be released under Arizona law.

CLIENT INITIALS

3. ASSUMPTION OF RISKS

Client understands that physical activity carries inherently dangerous risks that cannot be eliminated regardless of the care taken. **These risks include the risk of serious injury and even death.** Client specifically acknowledges the risks of training in a private home (including stairs, flooring, furniture, pets, and limited space), outdoors (including uneven ground, heat, and sun exposure), and by live video, where a trainer cannot physically assist. Client is voluntarily participating with knowledge of these risks and **expressly assumes and accepts any and all risks of injury or death.**

CLIENT INITIALS

4. HEALTH STATUS, SCREENING, AND DISCLOSURE

Client represents that Client knows of no medical or physical condition that would prevent safe participation, and that the information given in the **Client Information & Health History questionnaire and the PAR-Q** is true and complete. Those documents are incorporated into this Agreement by reference. Where the PAR-Q or any medical provider indicates that clearance is advisable, Client will obtain it before participating. **Client will promptly notify Above & Beyond Fitness of any change in health, medication, injury, surgery, or pregnancy,** and will stop exercising and tell the trainer immediately if Client feels pain, dizziness, shortness of breath, or any other concerning symptom.

CLIENT INITIALS

5. SCOPE OF PRACTICE

Client understands that Above & Beyond Fitness provides fitness instruction only. **Above & Beyond Fitness is not a licensed physician, physical therapist, occupational therapist, or dietitian,** and nothing provided is medical advice, diagnosis, treatment, rehabilitation, or medical nutrition therapy. Specialized programming, including PWR!Moves® for Parkinson's, is designed to **complement — not replace —** care directed by Client's medical providers. Any general nutrition guidance is educational only.

CLIENT INITIALS

6. TRAINING ENVIRONMENT AND CLIENT RESPONSIBILITIES

For sessions at a location provided by Client, Client agrees to provide a reasonably safe space with adequate clear floor area, lighting, and ventilation; to secure pets; to remove obvious trip hazards; and to disclose known hazards. Any equipment supplied by Client must be in sound working order and appropriate for its use. **Above & Beyond Fitness may modify, postpone, or end a session at any time if conditions are judged unsafe,** and doing so is not a breach of this Agreement.

CLIENT INITIALS

7. VIRTUAL TRAINING

For sessions delivered by live video, Client acknowledges that **the trainer cannot physically spot, assist, or intervene,** and may be unable to summon help. Client is responsible for the safety of the training space and equipment and for having a means to call for assistance. Client is encouraged to have another adult present if Client has a fall risk, a balance or cardiac condition, or is training at higher intensity. Client accepts that technology may interrupt or degrade a session.

CLIENT INITIALS

8. INDEMNIFICATION

Client agrees to indemnify and hold harmless Above & Beyond Fitness from claims brought by third parties arising out of Client's own negligence or Client's breach of this Agreement. To the extent permitted by Arizona law, the party that prevails in any action to enforce this Agreement may recover its reasonable attorneys' fees and costs.

CLIENT INITIALS

9. GOVERNING LAW, VENUE, AND CONSTRUCTION

This Agreement is governed by the law of the State of Arizona, and any legal action must be brought in Maricopa County, Arizona. It is intended to be as broad and inclusive as Arizona law permits. If any provision is held invalid or unenforceable, it shall be reformed to the maximum extent enforceable, and the remainder shall continue in full force and effect. This Agreement, together with the health documents incorporated in Section 4, is the entire agreement between the parties on this subject. An electronic or scanned signature has the same effect as an original.

CLIENT INITIALS

10. ACKNOWLEDGEMENT OF UNDERSTANDING

Client has read this Agreement and fully understands its terms. **Client understands that Client is giving up substantial rights, including the right to sue for ordinary negligence.** Client acknowledges signing freely and voluntarily, and intends this to be a release and assumption of risk **to the fullest extent permitted by Arizona law, subject to the exclusions stated in Section 2.**

CLIENT NAME (PLEASE PRINT)

CLIENT SIGNATURE

DATE

11. IF THE CLIENT IS UNDER 18

The parent or legal guardian signing below represents that they have legal authority to act for the minor, and they agree to everything above on the minor's behalf and on their own behalf. **The parent or guardian further agrees to indemnify and hold harmless Above & Beyond Fitness from any claim brought by or on behalf of the minor arising from ordinary negligence, to the fullest extent permitted by Arizona law.** The parties understand that some rights of a minor may not be waivable in advance, and that this Section applies only so far as the law allows.

PARENT/GUARDIAN NAME (PLEASE PRINT)

PARENT/GUARDIAN SIGNATURE

DATE

OPTIONAL – PHOTO AND VIDEO CONSENT

This section is **entirely optional and separate** from the agreement above. Declining has no effect on training, pricing, or scheduling. If you consent, you allow Above & Beyond Fitness to photograph or record you during sessions and to use those images on its website and social media. You may withdraw consent at any time in writing.

☐ I consent ☐ I do not consent

SIGNATURE · DATE